

Court No. - 3

Case :- WRIT - C No. - 6144 of 2022

Petitioner :- M/S Reflux Extrusion And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Alok Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Sri Anubhav Singh, learned counsel appears on behalf of respondent nos. 3 and 6.

Heard learned counsels for the parties.

This writ petition has been filed, inter alia, praying for the following relief:

"a) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 23.11.2021 issued by the respondent no.5, requiring the petitioner to pay an amount amounting to Rs. 74,24,271/.

b) Issue a writ, order or direction in the nature of certiorari quashing the entire recovery proceedings initiated in pursuance of Demand Notice dated 23.11.2021, issued as against the petitioner in respect of Electricity Connection No. 037528 and Account No. 2400000570."

Sri Anubhav Singh, learned counsel for the respondent No. 3 and 6/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No. 6, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.6 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.5.2022

sfa/